University of St.Gallen

Course and Examination Fact Sheet: Spring Semester 2026

8,491: How Does Law Protect in War

ECTS credits: 4

Overview examination/s

(binding regulations see below)
decentral - Active participation, Analog, Individual work individual grade (25%)
Examination time: Term time
decentral - Written examination, Digital, Individual work individual grade (75%, 90 mins.)
Examination time: Term time

Attached courses

Timetable -- Language -- Lecturer
8,491,1.00 How Does Law Protect in War -- English -- Khan Daniel-Erasmus

Course information

Prerequisites

Students are expected to have a basic knowledge of Public International Law and to have good English skills. Since the course will at times explore the subject-matter somewhat off the beaten track, students are further expected to be open-minded for new, not (purely) legal perspectives.

Learning objectives

After completion of the course, students should be in a position to critically assess on his or her own the legality vel non of the behavior of states and other actors involved in armed conflict against the background of (universally applicable) rules and standards of IHL.

Content

Since the dawn of civilization, war is a faithful companion of humanity and - unfortunately enough - is very likely to remain so for the foreseeable future. International law provides two responses to the challenges of war: First, a set of rules aimed at limiting (or even banning) recourse to military force as such (jus ad bellum/jus contra bellum). And, second, a set of rules imposing, for humanitarian reasons, restraints on the use of violence once an armed conflict has erupted (jus in bello). The subject-matter of the course is the second (and obviously only second-best) response to the scourge of war: We will explore the origins of International Humanitarian Law (IHL) or, as it was formerly called, the Law of Armed Conflict (LOAC), and we will briefly address some of its political and philosophical underpinnings. Participants will then be provided with an overview of the ever-growing corpus of IHL treaty law and custom. We will further examine the (material/personal/temporal/geographic) scope of application of IHL and its relationship to other branches of international law. We will proceed to learn about basic principles of IHL (in particular the various emanations of the principle of distinction), the inherent limits of the idea of humanity in warfare and will finally discuss some contemporary challenges for IHL. Overall, the course aims to provide students with knowledge and tools to recognize that every struggle of the state - against terrorism or any other enemy - must be conducted according to (legal) rules and that, even in times of war, the assertion of the existence of legal "black holes" is as unacceptable as are maxims such as "the end justifies the means" or "during war, the laws are silent (silent enim legis inter arma)". After completion of the course, students should therefore be in a position to critically assess on his or her own the legality vel non of the behavior of states and other actors involved in armed conflict against the background of (universally applicable) rules and standards of IHL.

Structure and indications of the learning and teaching design

The course will be taught as a block course in a combination of lecture and seminar-style discussion. Active participation and interaction is a must.

Literature

A comprehensive reader (hardcopy) will be made available to participants at the outset of the course (possibly already before on studynet). Make sure you bring a copy of the principal legal instruments, at least the Geneva Conventions (1949)) and the Additional Protocols (1977, 2006). A comprehensive treaty collection (Documents of International Law 2006 - English/German, Joint Publication of the Federal Foreign Office, the German Red Cross, and the Federal Ministry of Defense) will be posted on studynet. All legal instruments are also available for (free) download on the ICRC website (https://www.icrc.org/ihl).

In addition - or in the alternative - you may download the ICRC Digital App (App Store/Microsoft/Google Play): https://www.icrc.org/en/document/ihl-digital-app (comprehensive collection of IHL instruments).

Additional information

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Examination information

Examination sub part/s

1. Examination sub part (1/2)

Examination modalities

Examination type	Active participation
Responsible for organisation	decentral
Examination form	Oral examination
Examination mode	Analog
Time of examination	Term time
Examination execution	Synchronous
Examination location	On Campus
Grading type	Individual work individual grade
Weighting	25%
Duration	--

Languages

Question language: English
Answer language: English

Remark

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Examination-aid rule

Free aids provision

Basically, students are free to choose aids. Any restrictions are defined by the faculty members in charge of the examination under supplementary aids.

Supplementary aids

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2. Examination sub part (2/2)

Examination modalities

Examination type	Written examination
Responsible for organisation	decentral
Examination form	Written exam
Examination mode	Digital
Time of examination	Term time
Examination execution	Synchronous
Examination location	On Campus
Grading type	Individual work individual grade
Weighting	75%
Duration	90 mins.

Languages

Question language: English
Answer language: English

Remark

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Examination-aid rule

Open Book

Students are free to choose aids, apart from the following restrictions:

- pocket calculator models which are not part of the Texas Instruments TI-30 series, as well as any programmable electronic devices that are capable of communication such as electronic dictionaries, notebooks, tablets, smartphones, headsets, additional screens, etc. are not admissible;
- there is an option for faculty members to explicitly define exceptions under supplementary aids.

Procuring any aids, as well as ensuring their working order, is the exclusive responsibility of students.

Supplementary aids

The examination will be conducted as a digital examination with the following admissible devices:

- **Private notebook** (compulsory) – no tablets!
- **Mains adapter** (compulsory)
- External computer mouse (optional)
- External computer keyboard (optional)

We expressly point out that the examination cannot be taken with tablets/iPads

Technical requirements:

- Appliance and system requirements: cf. StudentWeb
- Special software: LockDown Browser
- HSG log-in including access modalities
- WLAN – operational access to Eduroam

Please make sure that

- all the updates have been carried out before the examination.

- in the run-up to digitally conducted examinations, technical tests (mock examinations without grades) are carried out. Participation is urgently required!
- you yourself are responsible for the perfect working order of your appliance, cf. also StudentWeb.
- keyboard stickers in the language in which the examination is conducted (such as English, German, as well as Arabic, Chinese, Russian, Japanese, etc. in language examinations) are permitted. The stickers must be identical with the original characters of the language concerned.

Any use of additional appliances that are not listed above will be strictly prohibited throughout the examination.

Any necessary actions with another software or additional appliances require the express prior approval of the persons in charge of the examination and are only permitted under supervision.

Any infringement of these rules of conduct may be sanctioned as an infringement of the rules of the University.

Content

The content of the examination is the subject-matter covered in class. The examination will consist of online questionnaires and essays on Canvas (Quizzes).

Literature

Literature will be provided during the course.

Please note

Please note that only this fact sheet and the examination schedule published at the time of bidding are binding and takes precedence over other information, such as information on StudyNet (Canvas), on lecturers' websites and information in lectures etc.
Any references and links to third-party content within the fact sheet are only of a supplementary, informative nature and lie outside the area of responsibility of the University of St.Gallen.

Documents and materials are only relevant for central examinations if they are available by the end of the lecture period (CW21) at the latest. In the case of centrally organised mid-term examinations, the documents and materials up to CW 13 (Monday, 23rd March 2026) are relevant for testing.

Binding nature of the fact sheets:

- Course information as well as examination date (organised centrally/decentrally) and form of examination: from bidding start in CW 04 (Thursday, 22nd January 2026);
- Examination information (supplementary aids, examination contents, examination literature) for decentralised examinations: in CW 12 (Monday, 16 March 2026);
- Examination information (supplementary aids, examination contents, examination literature) for centrally organised mid-term examinations: in CW 14 (Monday, 30 March 2026);
- Examination information (regulations on aids, examination contents, examination literature) for centrally organised examinations: two weeks before ending with de-registration period in CW 15 (Monday, 06 April 2026).